

## 26CHCP00265 26CHCP00265

County: los-angeles

Division: Civil Law and Motion

Department: F46

Hearing date: 2026-08-28

Source URL: [https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept\\_date=CHA%2CF46%2C08%2F28%2F2026](https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=CHA%2CF46%2C08%2F28%2F2026)

Source SHA-256: 6e6036b950bb8e34c263447f793b1f85eb95a5b118d9cfc69d1bff795ac04d9c

Case Number: 26CHCP00265 Hearing Date: August 28, 2026 Dept: F46

Dept. F-46

Hearing Date: August 28, 2026

Case Number: 26CHCP00265

(1) PETITIONER'S MOTION FOR ORDER COMPELLING RESPONDENT'S  
VERIFIED ANSWERS TO FORM INTERROGATORIES, SET ONE

(2) PETITIONER'S MOTION FOR ORDER COMPELLING RESPONDENT'S VERIFIED ANSWERS TO  
SPECIALLY PREPARED INTERROGATORIES, SET ONE

(3) PETITIONER'S MOTION FOR ORDER COMPELLING RESPONDENT'S VERIFIED RESPONSES TO  
DEMAND FOR INSPECTION AND PRODUCTION OF DOCUMENTS, SET ONE

Motions filed on July 16, 2026.

MOVING PARTY: State Farm Mutual Automobile Insurance Company  
(State Farm)

RESPONDING PARTY: Araik Khacatryan (Respondent)

NOTICE: OK.

RELIEF REQUESTED: State Farm seeks orders compelling  
Respondent to serve verified responses without objections to Form  
Interrogatories, Set One, Specially Prepared Interrogatories, Set One, and  
Demand for Inspection and Production of Documents, Set One, and to produce

responsive documents within 20 days.

RULING: Granted. Respondent shall serve verified responses without objections to Form Interrogatories, Set One, Specially Prepared Interrogatories, Set One, and Demand for Inspection and Production of Documents, Set One, and produce all responsive documents within 20 days.

## BACKGROUND

On July 15, 2026, State Farm filed a Petition to Open Unlimited Civil Court File to Establish Jurisdiction Over Uninsured/Underinsured Motorist Arbitration Matters Under Insurance Code section 11580.2(f).

On July 16, 2026, State Farm filed the present motions to compel responses to Form Interrogatories, Set One, Specially Prepared Interrogatories, Set One, and Demand for Inspection and Production of Documents, Set One. The motions are supported by the declarations of Leesa A. Freed and exhibits.

No opposition was filed.

## DISCUSSION

“[T]he uninsured motorist law grants the superior court the exclusive jurisdiction to hear discovery matters arising under uninsured motorist arbitrations.” (Miranda v. 21st Century Ins. Co. (2004) 117 Cal.App.4th 913, 926.)

Insurance Code section 11580.2(f) provides that “Title 4 (commencing with Section 2016.010) of Part 4 of the Code of Civil Procedure shall be applicable to these determinations, and all rights, remedies, obligations, liabilities, and procedures set forth in Title 4 (commencing with Section 2016.010) of Part 4 of the Code of Civil Procedure shall be available to both the insured and the insurer at any time after the accident, both before and after the commencement of arbitration, if any.”

Here, the Petition was served on Respondent’s counsel by mail and electronic service. (7/16/26 Proofs of Service.) Case law holds that mail service is sufficient to acquire personal jurisdiction over the insured

when the insured has initiated the contractual arbitration. (Miranda, supra, 117 Cal.App.4th at p. 927.) Respondent initiated the underinsured motorist arbitration on May 28, 2025. (Freed Decl., ¶ 2, Exh. A.) Thus, service on Respondent's counsel is sufficient.

As to interrogatories, Code of Civil Procedure section 2030.290 provides that "[i]f a party to whom interrogatories are directed fails to serve a timely response," the party waives the right to exercise the option to produce writings under section 2030.230, as well as any objection to the interrogatories, including one based on privilege or work product. (Code Civ. Proc., § 2030.290, subd. (a).) "The party propounding the interrogatories may move for an order compelling response to the interrogatories." (Id., subd. (b).) All that need be shown is that the interrogatories were properly served, the time to respond expired, and no response of any kind was served. (Leach v. Superior Court (1980) 111 Cal.App.3d 902, 905-906.)

As to document demands, a party may move for an order compelling responses "[i]f a party to whom a demand for inspection, copying, testing, or sampling is directed fails to serve a timely response." (Code Civ. Proc., § 2031.300, subd. (b).) Failure to timely respond waives all objections to the demand. (Id., subd. (a).)

Here, State Farm served Respondent with Form Interrogatories, Set One, Specially Prepared Interrogatories, Set One, and Demand for Inspection and Production of Documents, Set One, on July 17, 2025. (Freed Decl., ¶ 3, Exh. B.) Responses were originally due August 18, 2025. (Ibid.) State Farm granted several extensions and additional opportunities to respond, ultimately through February 13, 2026. (Freed Decl., ¶¶ 4-11, Exhs. C-I.) On May 1, 2026, State Farm again requested a date certain for the responses and advised that it would proceed with motions to compel if no date was provided. (Freed Decl., ¶ 13, Exh. J.) As of July 16, 2026, Respondent had served no responses to any of the three sets of discovery. (Freed Decl., ¶ 14.)

The unopposed motions are granted.

## CONCLUSION

State Farm's Motion to Compel Responses to Form Interrogatories, Set One, is GRANTED. Respondent Araik Khacatryan is ordered to serve verified responses, without objections, within 20 days.

State Farm's Motion to Compel Responses to Specially Prepared Interrogatories, Set One, is GRANTED. Respondent Araik Khacatryan is ordered to serve verified responses, without objections, within 20 days.

State Farm's Motion to Compel Responses to Demand for Inspection and Production of Documents, Set One, is GRANTED. Respondent Araik Khacatryan is ordered to serve verified responses, without objections, and produce responsive documents in accordance with those responses, within 20 days.